

The service of the Subpœna is generally, as we have stated, a personal service ; but there are cases where leaving the copy at the residence of the Defendant, and the like, is deemed good service. It is recommended, however, that the service be personal in every case when it can be effected ; but, were it peremptory in every case, the ends of justice might be defeated by the concealment of a Defendant. There are cases in which service not personal has been held sufficient. See *Earl Chesterfield vs. Bond*. 2. Beaven, 263.

When service of Subpœna not personal.

Under the 20th Order (see *post* p. 29), it will be seen that the service, in order to enable the Plaintiff to appear for the Defendant, may be at his dwelling house or usual place of abode. Still it is apprehended that there must be some good reason for omitting to make the personal service. (See *Pultney vs. Skelton*, 5 Vesey, 147).

Under special circumstances the Court may order service of a Subpœna on the Agent or Solicitor of the Defendant. The following are some of the cases on the subject :—*Smith vs. H. M. Co.*, 1 Schoales & Lefroy, 238 ; *Bromley vs. Bank of England*, 7 Jurist, 120 ; *Hobhouse vs. Courtney*, 12 Simons, 140 ; *Murray vs. Vibait*, 1 Phillips, 521 ; *Cooper vs. Wood*, 5 Beaven, 391 ; *Woodall vs. Walker*, 3 Hare, 339 ; *Hornby vs. Holmes*, 4 Hare, 306 ; *Cope vs. Russell*, 11 Jurist, 463 ; *Hurst vs. Hurst*, 12 Jurist, 152 ; *Waterton vs. Croft*, 5 Simons, 502 ; *Kinder vs. Forbes*, 2 Beaven, 503 ; *Lane vs. Hardwicke*, 5 Beaven, 222.

Substitutional service.

After amendment of a Bill, it is sufficient, as regards all Defendants to the Original Bill who have appeared to it, that the Subpœna to answer be served on the Solicitor for such Defendants, the 14th Order of June, 1837, remaining, in that respect, in force. That Order is as follows :

Service of Subpœna to amended Bills.

XIV. That service on the Solicitor of any Subpœna to rejoin, or to answer an amended Bill, or to hear judgment, shall be deemed good service.

Order of 1837. Subpœna to amended Bill.

That part of the above Order relating to Subpœnas to rejoin needs not be attended to, for that writ was abolished